

TEMPORARY STRUCTURE RENT AGREEMENT

For Kiosk, Container, and Temporary Commercial Structure Rentals

Subject to the Contracts Act, 1960 (Act 25) and applicable Municipal Assembly Permit Requirements

IMPORTANT NOTE TO BUYER

This Agreement covers the rental of a space or plot of land for the placement of a kiosk, shipping container, wooden booth, or similar temporary structure for commercial purposes. It is used extensively for micro-businesses in Ghana including provision sellers, mobile money agents, phone charging stations, food vendors, phone accessories sellers, and similar traders.

PARTIES

TEMPORARY STRUCTURE RENT AGREEMENT made this _____ day of _____, _____

SPACE OWNER / LANDLORD

Full Name: _____

Ghana Card / Passport No.: _____

Address: _____

Phone: _____

Email: _____

(hereinafter referred to as "the Space Owner")

OCCUPANT / TRADER

Full Name: _____

Ghana Card / Passport No.: _____

Nature of Business: _____

Phone: _____

Email: _____

(hereinafter referred to as "the Occupant")

SPACE AND STRUCTURE DETAILS

Location of Space: _____

Ghana Post GPS: _____

Space Dimensions (metres x metres): _____

Structure Type:

☐ Metal Kiosk

☐ Wooden Booth

☐ Shipping Container

☐ Converted Container

☐ Canvas/Semi-Permanent

☐ Other

Structure Ownership:

☐ Structure belongs to the Space Owner

☐ Structure belongs to the Occupant

☐ Structure to be provided by: _____

RECITALS

WHEREAS the Space Owner holds the right to let or licence the above-described space for commercial use and is willing to permit the Occupant to use it on the terms herein; AND WHEREAS the Occupant wishes to use the space for the conduct of lawful commercial activities; NOW THEREFORE the parties agree as follows:

CLAUSE 1 — TERM

- 1.1 The Space Owner permits and the Occupant takes occupation of the Space for a period of _____ commencing on _____ [and ending on _____ / on a month-to-month basis until terminated].
- 1.2 Either party may terminate this Agreement by giving _____ [7/14/30] days' written notice to the other party.
- 1.3 The Space Owner may terminate immediately, without notice, only where: (a) the Occupant conducts an illegal activity; (b) the Occupant causes serious damage.

CLAUSE 2 — RENT

- 2.1 Rent: GHS _____ per [week/month], payable [in advance / on the _____ day of each period].
- 2.2 Paid by: [cash / mobile money / bank transfer] to: _____
- 2.3 Space Owner shall issue a written receipt for every payment. 2.4 Rent shall not be increased without at least _____ [30/60] days' written notice.

CLAUSES 3–12 — STRUCTURE OWNERSHIP, PERMITTED USE, UTILITIES, MAINTENANCE, PERMITS, OBLIGATIONS, DAMAGE, TERMINATION, DISPUTES, GENERAL

- 3: Where structure belongs to Space Owner: let in current condition; Occupant keeps clean; Occupant reports defects; Space Owner repairs within reasonable time. Where structure belongs to Occupant: Occupant places and maintains at own cost; removes within _____ days on termination; failure to remove entitles Space Owner to arrange removal at Occupant's cost. Neither party shall use structure as residential dwelling.
- 4: Use solely for: _____. No expansion without consent. Comply with all applicable laws including Municipal Assembly requirements. Obtain all necessary permits.
- 5: Utility arrangements: No utility connection available / Connect to Space Owner's supply (GHS _____ per month) / Arrange own independent supply. No tapping into utility supply without consent. All costs of independent supply borne solely by Occupant.
- 6: Occupant shall: keep Space and structure clean; not deposit waste creating a nuisance; not block pedestrian access; carry out minor maintenance; maintain surrounding area in clean condition.
- 7: Occupant solely responsible for obtaining and renewing Municipal Assembly permits. Space Owner makes no representation that Space is permitted for commercial use. Occupant shall comply with any Municipal Assembly enforcement action immediately and at own cost. This Agreement terminates automatically upon such enforcement action.
- 8: Space Owner shall: permit quiet use of Space; not interfere with business operations without cause; give _____ [7/14] days' notice before requiring temporary vacation.
- 9: Occupant responsible for damage caused by their activities, employees, agents, or customers. Space Owner not liable for loss of goods, stock, or business income from any cause. Occupant shall not hold Space Owner liable for any business losses.
- 10: On termination: immediately cease operations; remove structure (if Occupant-owned) within stated period; leave Space clean and in original condition. Space Owner may recover Space through self-help where Occupant has clearly abandoned, provided no force used against any person. Contested evictions follow Act 220 procedure or court relief.
- 11: Disputes resolved by direct discussion first. Unresolved disputes: Rent Control Department (where Act 220 applies) or District Magistrate Court.
- 12: Entire agreement. Variations in writing. Governed by laws of Ghana. Severability.

EXECUTION

SIGNED by the LANDLORD:

Full Name: _____

Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

SIGNED by the TENANT:

Full Name: _____

Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

SCHEDULE 1 — DESCRIPTION OF SPACE AND STRUCTURE AT COMMENCEMENT

(Record current condition, approximate dimensions, utility connections, any existing damage or defects)

SCHEDULE 2 — PERMIT / APPROVAL DETAILS

Municipal Assembly: _____

Permit Number (if any): _____

Permit Expiry Date: _____

Conditions attached to permit: _____

SCHEDULE 3 — SPECIAL CONDITIONS

1. _____
2. _____
3. _____